

ORDER SHEET

**IN THE LAHORE HIGH COURT, RAWALPINDI BENCH, JUDICIAL
DEPARTMENT**

Criminal Misc. No. 2065/B of 2014

Abdul Rehman Versus. The State etc.

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
------------------------------------	------------------	---

02.02.2015 Mr. Muhammad Iftikhar Satti, Advocate for the petitioner.

Mr. Tariq Pervaiz Abbasi, Advocate for the complainant.

Ch. Qaiser Mushtaq, learned ADPP alongwith Mr. Mohammad Hafeez, S.I.

Through this petition, Abdul Rehman petitioner/accused has sought his post arrest bail in case FIR No.337 dated 14.08.2014 for offences under sections 302/324, 148/149, 109 PPC registered at P.S. Kahuta, district Rawalpindi.

2. Different charges including murder have been reported in the above said FIR and the role attributed to the present petitioner is that he allegedly conspired with his accomplices for the commission of the offence.

3. I have heard the learned counsel for the petitioner/accused, complainant as well as the learned ADPP and have gone through the record of this case with their assistance.

4. The petitioner / accused was neither present at the time of occurrence nor he actively participated in the commission of the crime. Hence, there is no allegation that he fired at the deceased or any prosecution witness at the time of occurrence. It is settled law that vicarious liability of the accused is to be determined by the learned trial Court. The case of conspirator or abettor not present on the spot stands at the lower footing than the accused instigating his companions to commit crime being himself present on the spot.

5. The Hon'ble Apex Court has educatively held in case reported as **Syed Amanullah Shah Vs The State and other** (PLD 1996 SC 241) as under:-

“The allegation of Lalkara usually leveled against an accused instigating his companions to kill someone is frequently made in our country, but the Courts on the tentative assessment of the evidence about the allegation of Lalkara, grant bail to the accused allegedly raising Lalkara or instigating their companions to commit the crime, with almost equal frequency. If bail can be granted to a person present at the spot at the time of occurrence instigating his companions to kill someone present there, then why a person who was not present on the spot but allegedly instigated the accused to kill the deceased should be deprived of such concession during the trial. There can be no two opinions that the case of a conspirator or abettor not present on the spot stands at lower footing than the case of the accused instigating his companion to commit the crime being himself present on the spot. Furthermore, it is very easy to set up accusation of abetment/instigation/conspiracy/Iema; needless to say when parties are inimically dispressed, the possibility of false implication of opponent is very much there”.

6. The investigation of this case qua the petitioner/accused has already been finalized and his physical custody is not required at this stage for the purpose of investigation. Challan has already been submitted before the Learned Trial Court wherein only the charge has been framed so far. The petitioner is 60 years old. In the circumstances of this case mentioned above, I found the case against the petitioner one of further inquiry into his guilt within the purview of subsection (2) of section 497, Cr.P.C

7. For the reasons mentioned above, this bail petition is accepted and the petitioner/accused namely Abdul Rehman is admitted to bail subject to furnishing bail bond in the sum of Rs.200000/- (Rupees Two Hundred Thousands) with one surety in the like amount to the satisfaction of the learned trial court.

8. The observations made above are tentative in nature and are strictly confined to the decision of this bail petition.

(MASUD ABID NAQVI)
JUDGE

Approved for reporting.

JUDGE